

SUPREME COURT

APEX COURT INSIDE ONE — APPOINTMENT POWER, COLLEGIUM EVOLUTION — QUALIFICATIONS, TENURE, REMOVAL AND — JURISDICTION GATEWAY: CHOOSE THE — REVIEW, CURATIVE POWER, COURT — PRECEDENT, COMPLETE JUSTICE, ASSISTANCE

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 APEX COURT INSIDE ONE INTEGRATED JUDICIAL HIERARCHY

APEX COURT INSIDE ONE INTEGRATED JUDICIAL HIERARCHY ARTICLES 124-147, PART V SUPREME COURT CONSTITUTIONAL APEX + FINAL APPELLATE COURT HIGH COURTS STATE-LEVEL CONSTITUTIONAL COURTS SUBORDINATE COURTS ORDINARY TRIAL AND FIRST-APPEAL STRUCTURE

INTEGRATED DOES NOT MEAN UNITARY ADMINISTRATION

ARTICLES 124-147, PART V

Supreme Court: constitutional apex + final appellate court

High Courts: State-level constitutional courts subordinate courts: ordinary trial and first-appeal structure

INTEGRATED DOES NOT MEAN UNITARY ADMINISTRATION

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLES 124-147, PART V
- Supreme Court: constitutional apex + final appellate court
- High Courts: State-level constitutional courts subordinate courts: ordinary trial and first-appeal structure

POWER / PROCEDURE

- INTEGRATED DOES NOT MEAN UNITARY ADMINISTRATION
- Article 141 promotes legal uniformity; Articles 226, 227 and 235 preserve local access and control.
- STRUCTURE CARD sanctioned strength 34 including CJI

CHECK / LIMIT

- retirement 65
- seat Delhi under Article 130
- Article 145(3) — at least five judges for a substantial constitutional question.

FEDERAL / RIGHTS IMPACT

- INTEGRATED DOES NOT MEAN UNITARY ADMINISTRATION

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: India replaced Privy Council appeals with a constitutionally integrated judiciary, making the Supreme Court the final national court without displacing High Court control below.

01

STAGE 01 APPOINTMENT POWER, COLLEGIUM EVOLUTION AND THE NJAC TEST

APPOINTMENT POWER, COLLEGIUM EVOLUTION AND THE NJAC TEST ARTICLE 124 TEXT PRESIDENT APPOINTS AFTER CONSTITUTIONALLY REQUIRED CONSULTATION. DOCTRINE TIMELINE FIRST JUDGES CASE (1981) EXECUTIVE PRIMACY SECOND JUDGES CASE (1993) JUDICIAL PRIMACY; COLLEGIUM CREATED

ARTICLE 124 TEXT — President appoints after constitutionally required consultation.

DOCTRINE TIMELINE

First Judges Case (1981) — executive primacy

Second Judges Case (1993) — judicial primacy; collegium created

Third Judges Case (1998) — CJI + four senior-most judges for Supreme Court appointments

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 124 TEXT — President appoints after constitutionally required consultation.
- DOCTRINE TIMELINE

POWER / PROCEDURE

- First Judges Case (1981) — executive primacy
- Second Judges Case (1993) — judicial primacy; collegium created

CHECK / LIMIT

- Third Judges Case (1998) — CJI + four senior-most Judges for Supreme Court appointments
- 99th Amendment + NJAC Act, 2014 — commission model

FEDERAL / RIGHTS IMPACT

- Fourth Judges Case (2015) — NJAC invalid; collegium restored
- REFORM TEST transparent criteria + diversity + timely processing, without executive capture of adjudication.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Judges Cases shifted appointment primacy toward the collegium, while the NJAC judgment protected judicial independence without declaring every alternative appointments model unconstitutional.

02

STAGE 02 QUALIFICATIONS, TENURE, REMOVAL AND INDEPENDENCE FIREWALL

QUALIFICATIONS, TENURE, REMOVAL AND INDEPENDENCE FIREWALL INDIAN CITIZEN + FIVE YEARS AS HIGH COURT JUDGE OR DISTINGUISHED JURIST IN THE PRESIDENT'S OPINION. SERVICE CONSTITUTIONAL OATH SECURE TENURE TO 65 CHARGED EXPENDITURE

PROTECTED CONDITIONS POST-RETIREMENT PRACTICE PROHIBITED BEFORE ANY COURT OR REMOVAL PROVED MISBEHAVIOUR OR INCAPACITY

Indian citizen + five years as High Court judge OR ten years as High Court

OR distinguished jurist in the President's opinion.

SERVICE constitutional oath — secure tenure to 65 — charged expenditure — protected conditions post-retirement

any court or authority in India.

CONSTITUTIONAL BASIS / ARTICLE

- Indian citizen + five years as High Court judge OR ten years as High Court advocate
- OR distinguished jurist in the President's opinion.

POWER / PROCEDURE

- SERVICE constitutional oath — secure tenure to 65 — charged expenditure — protected conditions post-retirement practice prohibited before
- any court or authority in India.

CHECK / LIMIT

- REMOVAL proved misbehaviour or incapacity — special majority in each House — presidential order.
- INDEPENDENCE + ACCOUNTABILITY security, salary and contempt power — decisional autonomy declaration of assets, in-house process and reasoned

FEDERAL / RIGHTS IMPACT

- appointments — public legitimacy.
- Indian citizen + five years as High Court judge OR ten years as High Court advocate

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 124(6) requires an oath or affirmation to bear true faith and allegiance to the Constitution, uphold sovereignty and integrity, and perform duties without fear or favour, affection or ill-will.

03

STAGE 03 JURISDICTION GATEWAY: CHOOSE THE CONSTITUTIONAL ROUTE FIRST

JURISDICTION GATEWAY CHOOSE THE CONSTITUTIONAL ROUTE FIRST FEDERAL DISPUTE ARTICLE 131 ORIGINAL JURISDICTION: LEGAL-RIGHT DISPUTE IS ESSENTIAL. FUNDAMENTAL RIGHT ARTICLE 32: ITSELF A FUNDAMENTAL RIGHT. GENERAL PUBLIC-LAW WRONG

HIGH COURT ARTICLE 226 IS WIDER IN CAUSE AND

CONSTITUTIONAL BASIS / ARTICLE

- FEDERAL DISPUTE — Article 131 original jurisdiction; legal-right dispute is essential.
- FUNDAMENTAL RIGHT — Article 32; itself a Fundamental Right.
- GENERAL PUBLIC-LAW WRONG — High Court Article 226 is wider in cause and territorial reach.

POWER / PROCEDURE

CONSTITUTIONAL APPEAL — Article 132

- civil — 133
- criminal — 134.

CHECK / LIMIT

SPECIAL LEAVE — Article 136 extraordinary discretion, not a regular fourth appeal.

- ADVISORY — Article 143; opinion is advisory and normally non-binding.
- CURRENT ASSENT CONTROL

FEDERAL / RIGHTS IMPACT

- State of Tamil Nadu v. Governor of Tamil Nadu (2025) used timelines and deemed assent on its facts.
- In re Assent, Withholding or Reservation of Bills (2025) is a non-binding advisory opinion
- no rigid court-made timelines or automatic deemed assent; prolonged inaction remains reviewable.

CONSTITUTIONAL BASIS / ARTICLE

- FEDERAL DISPUTE — Article 131 original jurisdiction; legal-right dispute is essential.
- FUNDAMENTAL RIGHT — Article 32; itself a Fundamental Right.
- GENERAL PUBLIC-LAW WRONG — High Court Article 226 is wider in cause and territorial reach.

POWER / PROCEDURE

CONSTITUTIONAL APPEAL — Article 132

- civil — 133
- criminal — 134.

CHECK / LIMIT

- SPECIAL LEAVE — Article 136 extraordinary discretion, not a regular fourth appeal.
- ADVISORY — Article 143; opinion is advisory and normally non-binding.
- CURRENT ASSENT CONTROL

FEDERAL / RIGHTS IMPACT

- State of Tamil Nadu v. Governor of Tamil Nadu (2025) used timelines and deemed assent on its facts.
- In re Assent, Withholding or Reservation of Bills (2025) is a non-binding advisory opinion
- no rigid court-made timelines or automatic deemed assent; prolonged inaction remains reviewable.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Supreme Court's original, appellate, writ, advisory and review powers arise through distinct constitutional gateways, while Article 142 supplies relief within jurisdiction rather than creating jurisdiction itself.

04

STAGE 04 REVIEW, CURATIVE POWER, COURT OF RECORD AND CONTEMPT

REVIEW, CURATIVE POWER, COURT OF RECORD AND CONTEMPT ARTICLE 137 REVIEW ERROR-CONTROL WITHIN PRESCRIBED GROUNDS FINALITY REMAINS THE RULE. CURATIVE PETITION RUPA ASHOK HURRA (2002) RARE POST-REVIEW CURE FOR GRAVE MISCARRIAGE NO ROUTINE SECOND REVIEW.

ARTICLE 129 COURT OF RECORD AUTHORITATIVE RECORDS + POWER

ARTICLE 137 REVIEW error-control within prescribed grounds — finality remains the rule.

CURATIVE PETITION

Rupa Ashok Hurra (2002) — rare post-review cure for grave miscarriage

no routine second review.

ARTICLE 129 COURT OF RECORD authoritative records + power to punish contempt.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 137 REVIEW error-control within prescribed grounds — finality remains the rule.
- CURATIVE PETITION

POWER / PROCEDURE

- Rupa Ashok Hurra (2002) — rare post-review cure for grave miscarriage
- no routine second review.

CHECK / LIMIT

- ARTICLE 129 COURT OF RECORD authoritative records + power to punish contempt.
- CONTEMPT LIMIT fair criticism is not contempt; power protects administration of justice.

FEDERAL / RIGHTS IMPACT

- Supreme Court Bar Association (1998) — Article 142 cannot replace the governing disciplinary law.
- ARTICLE 137 REVIEW error-control within prescribed grounds — finality remains the rule.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 129 protects the Supreme Court's records and contempt authority, but fair institutional criticism remains compatible with democratic scrutiny.

05

STAGE 05 PRECEDENT, COMPLETE JUSTICE, ASSISTANCE AND BENCH DISCIPLINE

PRECEDENT, COMPLETE JUSTICE, ASSISTANCE AND BENCH DISCIPLINE ARTICLE 141 RATIO DECIDENDI OF SUPREME COURT LAW BINDS LARGER BENCH SMALLER BENCH: COORDINATE BENCH ORDINARILY REFERS DISAGREEMENT. ARTICLE 142 COMPLETE JUSTICE IN THE CAUSE OR MATTER ARTICLE 144

ALL CIVIL AND JUDICIAL AUTHORITIES ACT IN AID. ARTICLE 145 COURT RULES; FIVE-JUDGE FLOOR FOR ARTICLE 143 AND SUBSTANTIAL

ARTICLE 141 ratio decidendi of Supreme Court law binds all courts; obiter persuades, not identically

larger Bench smaller Bench; coordinate Bench ordinarily refers disagreement.

ARTICLE 142 complete justice in the cause or matter before the Court fills remedial gaps

statutory or constitutional limits does not create a free-standing legislative power.

ARTICLE 144 — all civil and judicial authorities act in aid.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 141 ratio decidendi of Supreme Court law binds all courts; obiter persuades, not identically binds.
- larger Bench smaller Bench; coordinate Bench ordinarily refers disagreement.

POWER / PROCEDURE

- ARTICLE 142 complete justice in the cause or matter before the Court fills remedial gaps cannot ignore substantive
- statutory or constitutional limits does not create a free-standing legislative power.

CHECK / LIMIT

- ARTICLE 144 — all civil and judicial authorities act in aid.
- ARTICLE 145 — Court rules; five-judge floor for Article 143 and substantial interpretation.

FEDERAL / RIGHTS IMPACT

- Articles 126-128 — acting CJI, ad hoc judges and retired-judge sittings are distinct routes.
- ARTICLE 141 ratio decidendi of Supreme Court law binds all courts; obiter persuades, not identically binds.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Supreme Court is among the world's strongest constitutional courts in legal authority, yet constitutional justice depends on affordable access, timely adjudication and executive compliance.

06

STAGE 06 JUDICIAL REVIEW, BASIC STRUCTURE, NINTH SCHEDULE AND TRIBUNALS

JUDICIAL REVIEW, BASIC STRUCTURE, NINTH SCHEDULE AND TRIBUNALS CONSTITUTIONAL SUPREMACY JUDICIAL REVIEW OF LAW AND EXECUTIVE ACTION. DOCTRINE CHAIN KESAVANANDA BHARATI (1973) AMENDMENT POWER CANNOT DAMAGE BASIC STRUCTURE MINERVA MILLS (1980)

LIMITED AMENDMENT POWER + PARTS III-IV HARMONY

CONSTITUTIONAL SUPREMACY — judicial review of law and executive action.

DOCTRINE CHAIN

Kesavananda Bharati (1973) — amendment power cannot damage Basic Structure

Minerva Mills (1980) — limited amendment power + Parts III-IV harmony

CONSTITUTIONAL BASIS / ARTICLE

- CONSTITUTIONAL SUPREMACY — judicial review of law and executive action.
- DOCTRINE CHAIN

POWER / PROCEDURE

- Kesavananda Bharati (1973) — amendment power cannot damage Basic Structure
- Minerva Mills (1980) — limited amendment power + Parts III-IV harmony

CHECK / LIMIT

- I.R. Coelho (2007) — post-24 April 1973 Ninth Schedule laws face Basic Structure review
- Article 143 advisory
- TRIBUNALS specialised adjudication may supplement courts.

FEDERAL / RIGHTS IMPACT

- L. Chandra Kumar (1997) — High Court Article 226/227 and Supreme Court Article 32 review remain part of the Basic Structure
- tribunals cannot become total constitutional substitutes.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: An ordinary law is not invalid merely because someone labels it contrary to basic structure; the challenge must connect to competence, Part III or another constitutional provision.

07

STAGE 07 PIL, ACTIVISM, RESTRAINT AND SOCIAL-TRANSFORMATION CONTROLS

PIL, ACTIVISM, RESTRAINT AND SOCIAL-TRANSFORMATION CONTROLS ACCESS EXPANSION HUSSAINARA KHATOON (1979) SPEEDY TRIAL AND UNDERTRIAL JUSTICE EPISTOLARY JURISDICTION + RELAXED COLLECTIVE-RIGHTS ACCESS CONTINUING MANDAMUS

MONITORED COMPLIANCE WHERE ORDINARY RELIEF IS INADEQUATE. JUDICIAL LEGISLATION VISHAKA (1997)

CONSTITUTIONAL BASIS / ARTICLE

- ACCESS EXPANSION
- Hussainara Khatoon (1979) — speedy trial and undertrial justice epistolary jurisdiction + relaxed standing — collective-rights access continuing

POWER / PROCEDURE

- mandamus — monitored compliance where ordinary relief is inadequate.
- JUDICIAL LEGISLATION

CHECK / LIMIT

- Vishaka (1997) — interim norm in a legal vacuum, anchored in rights and international law.
- CONTROL BOARD rights failure + legal vacuum may justify calibrated relief

FEDERAL / RIGHTS IMPACT

- BUT policy merits, polycentric choices and institutional capacity require restraint.
- Article 21 + principles + statutory review — constitutionalisation without replacing regulators.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A court crosses from adjudication toward governance when it designs policy without a constitutional hook, lacks administrable standards or continues management after lawful institutions can act.

08

STAGE 08 COMPARISONS, DELIVERY DEFICITS, TRAPS AND THE MAINS SPINE

COMPARISONS, DELIVERY DEFICITS, TRAPS AND THE MAINS SPINE INDIA-UK WRITTEN SUPREME CONSTITUTION + STRONG REVIEW VERSUS PARLIAMENTARY INDIA-USA COLLEGIUM-LED RECOMMENDATION VERSUS PRESIDENTIAL NOMINATION AND SENATE CONFIRMATION. DELIVERY CHAIN LEGAL AUTHORITY

AFFORDABLE FILING TIMELY HEARING REASONED ORDER

TECHNOLOGY HELPS LISTING, E-FILING AND ACCESS; IT DOES NOT

INDIA-UK written supreme Constitution + strong review versus parliamentary sovereignty under UK doctrine.

INDIA-USA collegium-led recommendation versus presidential nomination and Senate confirmation.

DELIVERY CHAIN legal authority — affordable filing — timely hearing — reasoned order — implementation.

technology helps listing, e-filing and access; it does not itself cure vacancies or exclusion.

PRELIMS FIREWALL

CONSTITUTIONAL BASIS / ARTICLE

- INDIA-UK written supreme Constitution + strong review versus parliamentary sovereignty under UK doctrine.
- INDIA-USA collegium-led recommendation versus presidential nomination and Senate confirmation.
- DELIVERY CHAIN legal authority — affordable filing — timely hearing — reasoned order — implementation.

POWER / PROCEDURE

- technology helps listing, e-filing and access; it does not itself cure vacancies or exclusion.
- PRELIMS FIREWALL
- Article 32 narrower in cause than 226

CHECK / LIMIT

- Article 136 discretionary
- Article 143 advisory
- Article 142 is bounded

FEDERAL / RIGHTS IMPACT

- Constitution Bench minimum five, not every constitutional plea.
- MAINS SPINE define role — cite Article — explain mechanism — case with year — limit — access reform
- independent, accountable and institutionally restrained constitutional-court conclusion.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 32 guarantees remedies for Fundamental Rights, whereas Article 226 extends to other legal rights; the latter is wider in purpose, not territorially unlimited.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT A1. CONSTITUTION BENCHES, PRECEDENT AND INSTITUTIONAL VOICE A2. ARTICLE 141 AND ARTICLE 142 ARE DIFFERENT POWERS A3. THE COURT'S POWER AND ITS COMPLIANCE DEPENDENCY A4. CONTINUING MANDAMUS REMEDY OR ADMINISTRATION?

A5. APPOINTMENT REFORM MATRIX A6. CONCISE SOURCE AND CURRENT-CONTROL NOTE

OPTIONAL DOCTRINE / CASE

- A1. Constitution Benches, precedent and institutional voice
- A2. Article 141 and Article 142 are different powers
- A3. The Court's power and its compliance dependency
- A4. Continuing mandamus: remedy or administration?

ADVANCED LIMIT

- A5. Appointment reform matrix
- A6. Concise source and current-control note
- [FACT] Article 145(3) creates a five-judge minimum, not a five-judge maximum.
- [FACT] Ratio and bench strength determine binding authority under Article 141.

COMPARATIVE NUANCE

- [ANALYSIS] Frequent small-bench adjudication improves throughput but can create fragmentation when nationally important issues are not referred promptly.
- [LIMIT] A later small bench cannot silently neutralise a larger bench; genuine conflict requires reference.
- [ANALYSIS] Confusing the two converts a case-specific remedy into a general law or, conversely, understates the precedential principle
- that actually binds.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.